

24NNCV06446 24NNCV06446

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Case Number: 24NNCV06446 Hearing Date: July 7, 2026 Dept: P

[TENTATIVE] ORDER DENYING PLAINTIFFS MOTION FOR RELIEF FROM DEEMED ADMISSIONS

I. INTRODUCTION

Plaintiffs Gohar Bosnuyan, Eric Vivanco-Perez and David Bosnuyan, a minor, by Gohar Bosnuyan as his guardian ad litem ("Plaintiffs"), bring this action against Defendants Hyland Inn Near Pasadena Civic Center; RVN Inc. and Vimal Patel ("Defendants"), alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) fraudulent concealment, (5) private nuisance, (6) public nuisance, and (7) breach of contract. Plaintiffs allege they were knowingly assigned to a hotel room infested with bedbugs, which caused physical and emotional injuries, property damage, and other harm.

On June 2, 2026, Plaintiffs filed the instant motion for relief from deemed admissions. On June 12, 2026, Defendants filed an opposition. No reply has been filed.

II. LEGAL STANDARD

[T]he court, on motion, may relieve that party from this waiver on its determination that party who fails to timely respond to discovery waives any objections, including those based on privilege. (Code Civ. Proc., §§ 2031.300, subd. (a) [RFPs], 2030.290 [interrogatories].) The Court may grant relief from waiver if (1) the responding party has subsequently served a response that is in substantial compliance; and (2) the failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2031.300, subd. (a) [RFPs], 2030.290 [interrogatories].)

In determining what constitutes "mistake, inadvertence, or excusable neglect" under the Discovery Act, courts apply the same or similar standards as for relief from default under C.C.P. § 473(b). (City of Fresno v. Superior Court (1988) 205 Cal.App.3d 1459, 1467.) Generally, the standard of what constitutes "mistake, inadvertence, or excusable neglect," is fact dependent. (See City of Fresno, 205 Cal.App.3d at pgs. 1466-1467.)

"The 'excusable neglect' referred to in the section is that neglect which might have been the act of a reasonably prudent person under the same circumstances. [Citation.]" (Baratti v. Baratti (1952) 109 Cal.App.2d 917, 921.) In deciding whether counsel's error is excusable, courts look to "(1) the nature of the mistake or neglect[] and (2) whether counsel was otherwise diligent in investigating and pursuing the claim." (Tackett v. City of Huntington Beach (1994) 22 Cal.App.4th 60, 65, citing Bettencourt v. Los Rios Community College District (1986) 42 Cal.3d 270, 276.) In determining whether the attorney's mistake or inadvertence was excusable, "the court inquires whether 'a reasonably prudent person under the same or similar circumstances' might have made the same error." (Bettencourt, 42 Cal.3d at pg. 276.

III. ANALYSIS

Plaintiffs seek relief from the deemed admissions arising from Defendants' Requests for Admissions, Set One, and request that the Court permit the responses they served on January 27, 2026, to serve as the operative responses. Plaintiffs argue their failure to timely respond was the result of mistake, inadvertence, surprise, or excusable neglect. They contend they have since served substantive responses and that Defendants will suffer no substantial prejudice because they have the responses and remain able to litigate the case on the merits. Alternatively, Plaintiffs seek discretionary relief under Code of Civil Procedure section 473(b). (Motion, pp. 1-7.)

Defendants oppose the motion, arguing Plaintiffs have failed to establish that the deemed admissions resulted from mistake, inadvertence, surprise, or excusable neglect. Defendants contend Plaintiffs repeatedly failed to respond despite receiving numerous extensions, that the January 27, 2026, responses were unverified and therefore ineffective, and that Plaintiffs have not otherwise demonstrated entitlement to relief under Code of Civil Procedure sections 2033.300, 473(b), or 1008. (Opposition, pp. 3-5.)

The Court concludes that relief is not warranted under Code of Civil Procedure section 2033.300. Although Plaintiffs subsequently served responses to the Requests for Admissions, the record does not sufficiently establish that the failure to timely respond was the result of mistake, inadvertence, surprise, or excusable neglect. Counsel's declaration fails to explain the nature of the alleged mistake or why Plaintiffs did not timely serve responses despite receiving multiple extensions. Instead, the declaration merely parrots the statutory language, stating that the failure resulted from "mistake, inadvertence, surprise, or excusable neglect," without providing any factual basis for that assertion.

Based on the foregoing, Plaintiffs have not established that their failure to timely respond resulted from mistake, inadvertence, surprise, or excusable neglect. Therefore, Plaintiffs have not made the requisite showing for relief under Code of Civil Procedure section 2033.300.

Even assuming Plaintiffs had established excusable neglect, the Court notes that the January 27, 2026, responses Plaintiffs seek to have deemed operative were unverified. Under California law, unverified responses to requests for admissions are tantamount to no responses at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) Therefore, the January 27, 2026, responses do not constitute effective responses under the Discovery Act.

IV. ORDER

The Court DENIES Plaintiffs motion for relief from deemed admissions.

Plaintiffs are to give notice.

Dated: July 7, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT